

**BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS AND THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS**

STATE OF COLORADO

Case Nos. 2012-3726 and 2012-5050

STIPULATION AND FINAL AGENCY ORDER

**IN THE MATTER OF THE APPLICATION FOR LICENSE TO PRACTICE PROFESSIONAL
COUNSELING AND CERTIFICATION TO PRACTICE ADDICTION COUNSELING IN
THE STATE OF COLORADO OF JEFFREY SZALAY, LPC NO. 6469, CAC III 20782,**

Respondent:

**IT IS HEREBY STIPULATED by and between the State Board of Licensed
Professional Counselor Examiners and the State Board of Addiction Counselor Examiners
("Boards") and Jeffrey Szalay ("Respondent") as follows:**

- 1. The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").**
- 2. Respondent was licensed to practice as a Professional Counselor ("LPC") and certified to practice as a Certified Addiction Counselor ("CAC III") in the State of Colorado at all times relevant herein.**
- 3. This Order is a full and final resolution of case numbers 2012-3726 and 2012-5050. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.**
- 4. Respondent admits the following:**
 - a. On August 13, 2012, Respondent entered into a Stipulation and Final Agency Order ("2012 Order") with the Boards in case numbers 2012-3726 and 2012-5050, due to his history of and treatment for alcohol abuse and addiction.**
 - b. The 2012 Order granted Respondent his LPC to practice professional counseling and his CAC III to practice addiction counseling, and required Respondent to be on probation for three years, including therapy monitoring and abstinence from addictive substances.**
 - c. Respondent relocated out of state and failed to complete the terms of the Order.**
 - d. Respondent offered to relinquish his LPC and CAC III.**

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 - c. Respondent relocated out of state and failed to complete the terms of the Order.**
 - d. Respondent offered to relinquish his LPC and CAC III.**

5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Boards find that Respondent violated §12-43-222(1)(a) and (e), C.R.S.

PERMANENT RELINQUISHMENT

6. Respondent hereby permanently relinquishes his LPC license and CAC III certification and the right to practice as a professional counselor and addiction counselor in the State of Colorado, commencing from the effective date of this Order, and requests that the Boards accept such relinquishments. Such relinquishments shall have the same force and effect as revocations ordered by the Boards. Respondent agrees not to reapply for licensure as a professional counselor or certification as an addiction counselor in the State of Colorado.

7. Following relinquishment of his license and certificate, Respondent shall not perform any act requiring a license or certificate to practice.

8. Respondent also agrees not to register as a psychotherapist in the State of Colorado nor will Respondent perform any act constituting psychotherapy as defined under § 12-43-201 (9), C.R.S.

TERMS AND CONDITIONS

9. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

10. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

11. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

12. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of § 12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to § 12-43-224, C.R.S.

13. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

14. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

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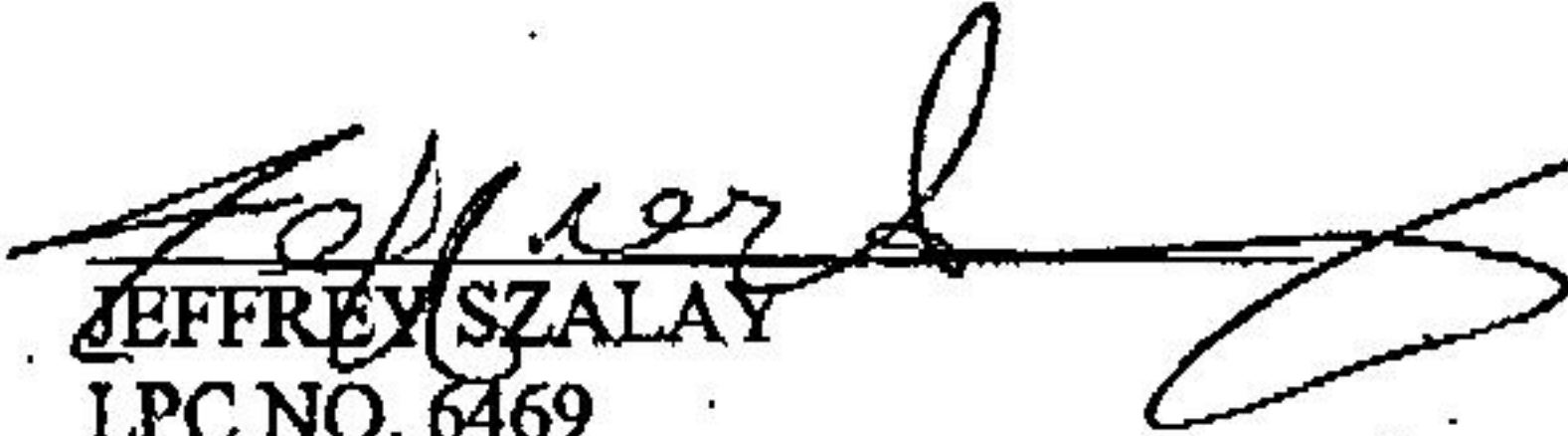
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15. This Order shall be admissible as evidence at any hearing held before the Boards.

AGREED TO AND ACCEPTED BY:

RESPONDENT


JEFFREY SZALAY

LPC NO. 6469

CAC III NO. 20782

AGREED TO AND ORDERED BY:

BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS AND
BOARD OF ADDICTION COUNSELOR
EXAMINERS


JACQUILINE ARCELIN

Program Director

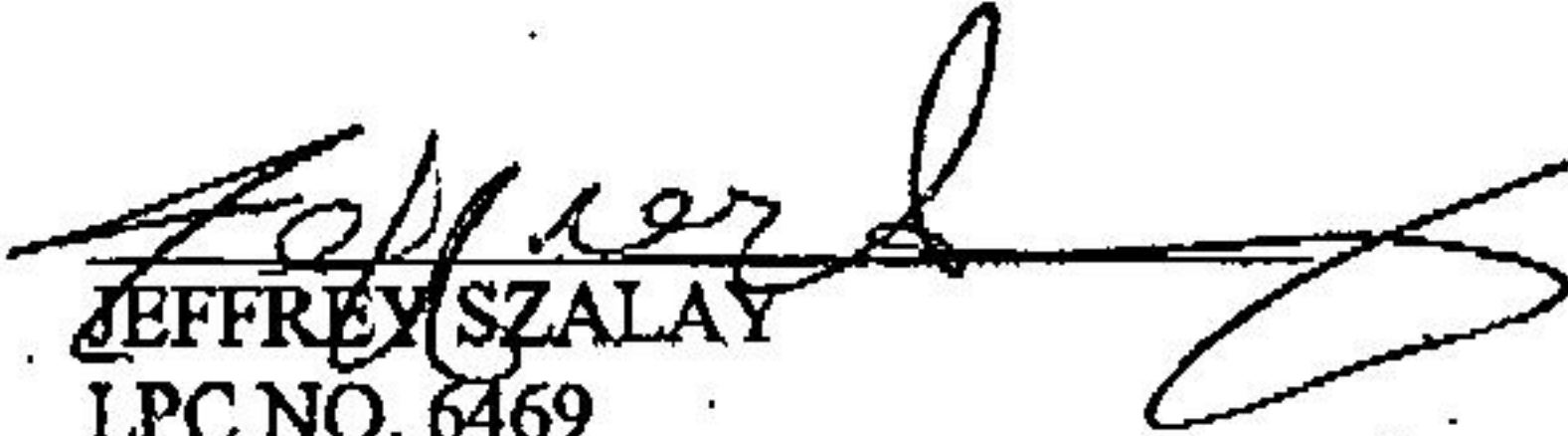
Effective this 13th day of

January, 2014.

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Program Director

Effective this 13th day of

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